

Protected B (when completed)

Mental Health Act Section 12

_____ was apprehended on _____
 name of person apprehended, if known date dd-mm-yyyy

at _____
 time hh:mm (e.g., "02:00" for AM and "14:00" for PM)

This person was apprehended at (describe place and address).

Note:

The first checkbox must be checked and grounds provided in the related textbox

I have reasonable and probable grounds to believe that

☒ the person apprehended is suffering from a mental disorder*, based on the following:

*The *Mental Health Act* defines a mental disorder as a substantial disorder of thought, mood, perception, orientation or memory that grossly impairs judgement, behaviour, capacity to recognize reality, or ability to meet the ordinary demands of life, but does not include a disorder in which the resulting impairment is persistent and is caused solely by an acquired or congenital irreversible brain injury.

Note:

Either the second or the third checkbox must be checked and grounds provided in the related textbox.

AND

☐ all of the following apply:

- (a) the person apprehended is, within a reasonable time, likely to cause harm to others or to suffer negative effects, including substantial mental or physical deterioration or serious physical impairment as a result of or related to the mental disorder;
- (b) the person apprehended should be examined in the interests of their own safety or the safety of others;
- (c) the circumstances are such that to proceed under section 10 of the *Mental Health Act* would be dangerous, based on the following:

OR

☐ all of the following apply:

- (a) the person apprehended is subject to a community treatment order and is not complying with the order;
- (b) the person apprehended should be examined in the interests of their own safety or the safety of others;
- (c) the circumstances are such that to proceed under section 10 of the *Mental Health Act* would be dangerous, based on the following:

Dated this _____
date dd-mm-yyyy

phone number

extension, if any

agency file number

Reg./ID number

agency/detachment/district office

printed name of peace officer

signature of peace officer